

PART I.

davits and orders from the clerk of the court. For the first, I have already spoken how unfitly appearances are taken by any but by the clerk, much less warrants to be made for process by any other; being in antient time wholly awarded by the lord chancellor or the court, and a great mission to the clerk to do it. But for any man to have the custody of the records being unsworn (which is the chief cause why the clerk of the court hath his fee), I know not how by law or reason it is warranted; for either they must say that they supply the place of deputies, and so ought to be sworn, or otherwise it is a great oversight to commit the same unto them; or else they must execute those places as the deputy's clerks, and then they cannot demand any fee to themselves, but the clerk's sole and antient fee. And I fear this multiplying of officers will, in short time, be complained of as a great grievance for increase of fees; and in the mean time the records are negligently kept, and many times lost.

THE other two, which upon the matter are both registered, and therefore sworn clerks, the one for the decrees of open court, the other for ordinary course, but the first hath always been a person allowed by the court as one of great trust, who otherwise may utterly pervert the justice and honour of the court: for surely in the execution of this part of the clerk's office consisteth the sovereignty of the place; for he is trusted to collect the voices of the lords, and to enter the sentence faithfully, and none of the presence (no not the lord chancellor) can or may alter the same. And therefore, whereas I said before, that it was a note of sovereignty that the king's privy seal was ever directed to the chancellor for all things to be done in the court, so likewise it is a great prerogative to the clerk of the court, that for altering or disannulling the decrees entered in court, the king hath directed his privy seal to the clerk of his council. So you shall find that *H. 8.* did in the 17th year of his reign, direct his
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